

FORM No.HCJD/C-121.
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. **Crl. Misc. No.36163-BC/2025**

Muhammad Ishaque		Versus	Zafar Iqbal & others
S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.	

<u>25.09.2025</u>	Mrs. Saima Asif Rana, Advocate for the petitioner. Hafiz Asghar Ali, Deputy Prosecutor General with Hasan Raza Khan DD(Investigation) HQ ACE, Lahore. Mr. Omais Nasir, Advocate with respondents No.1 & 2.
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Through the instant petition filed under Section 497(5) of the Code of Criminal Procedure, 1898, the petitioner, who is the complainant in FIR No. 931/2022, dated 29.07.2022, registered under Sections 420, 468, and 471 of the Pakistan Penal Code, 1860, read with Section 5(2) of the Prevention of Corruption Act, 1947, at Police Station B-Division, District Sheikhpura, has assailed the vires of the impugned order dated 15.05.2025, passed by the Senior Special Judge, Anti-Corruption, Punjab, Lahore, whereby pre-arrest bail granted to respondents No. 1 and 2 was confirmed.

2. Today, the Investigating Officer, while appearing before the Court, states that the arrest of respondents No. 1 and 2 is not required to him. The impugned order reflects that the Investigating Officer had taken the same stance before the court of first instance.

3. Heard. Record Perused.

4. It is a well-settled principle of law that the *sine qua non* for the grant of pre-arrest bail is the existence of a reasonable apprehension of arrest, not for the legitimate purpose of investigation, but one motivated by *mala fide* intent or driven by ulterior motives, such as to humiliate, harass, or exact personal vengeance under the cloak of legal

process.¹ It necessarily implies that in the absence of any reasonable apprehension of arrest, the prayer of pre-arrest bail becomes legally untenable and is not maintainable, as the foundational ground for invoking the court's extraordinary discretionary jurisdiction simply does not exist.

5. Once the Investigating Officer stated that the arrest of respondents No.1 and 2 was not required, the proper course for the learned court below was to dispose of the bail application by recording the said stance, rather than dilating upon the merits of the case and proceeding to confirm the pre-arrest bail. In the absence of a reasonable apprehension of arrest, a petition for pre-arrest bail is not maintainable, as where there exists no apprehension of arrest, the question of granting pre-arrest bail does not arise.

6. In view of the foregoing, I am of the considered view that the learned Judge, while confirming the pre-arrest bail petition, travelled beyond the scope of jurisdiction by unnecessarily delving into matters not warranted at that stage. Learned counsel for both parties, as well as the learned Law Officer, conceded to the aforesaid proposition of law and expressed no objection to the setting aside of the impugned order, whereby pre-arrest bail was confirmed in favour of respondents No. 1 & 2. Accordingly, this petition is **allowed**, and the impugned order is hereby **set aside** with the observation that, if at any subsequent stage the investigating agency considers the respondents' arrest necessary, they shall be at liberty to approach the court of first instance for pre-arrest bail, which shall be decided afresh, strictly on its own merits and in accordance with the law. A copy of this order

¹ Ajmal Khan versus Liaqat Hayat and another - PLD 1998 Supreme Court 97

shall also be transmitted to the learned Senior Special Judge,
Anti-Corruption, Punjab, Lahore, for future guidance.

(Ali Zia Bajwa)
Judge

Approved for reporting.

Imtiaz Nasir

Judge